Morris & Miller LLP

Katy, TX
Phone 832-555-7962

Settlement Demand

2024-01-16

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1219 - Demand for settlement

Dear Claims Representative:

Our office represents Karen Gonzalez in connection with the motor vehicle collision that occurred on 2023-09-12. Our client was lawfully traveling in the right lane when your insured, while changing lanes, moved into our client's vehicle, causing a sideswipe impact. The contact forced our client's vehicle against the guardrail and produced a sudden, forceful jolt to the head and neck.

Our cleint was transported from the scene and subsequently diagnosed with whiplash-type cervical strain. Treatment has included emergency evaluation, imaging, physical therapy, and ongoing prescribed care. Our client continues to experience neck stiffness, headaches, and limited range of motion, and has missed work during the recovery period.

The collision was caused entirely by your insured's failure to confirm that the adjacent lane was clear before changing lanes, a violation of the duty of care owed to other motorists. Liability is clear, and the medical documentation supports the injuries described.

To resolve this matter without litigation, we demand payment of $51,000.00, inclusive of medical expenses, lost wages, and general damages. This offer remians open for thirty (30) days from the date of this letter. If we do not receive a satisfactory response within that period, we are authorized to file suit without further notice.

Expert review: Jessica Herrera, accident reconstructionist

Sincerely,

Joshua Whitney
Morris & Miller LLP